
2:00 PM **LINE 5**

25-CIV-03556

DOMINIC HIGBEE-GONSALVES VS. ISHAR INVESTMENTS, INC., ET AL

DOMINIC HIGBEE-GONSALVES
ISHAR INVESTMENTS, INC.

CHRISTINA BEGAKIS
KANDICE CANCHAN

MOTION TO COMPEL INITIAL RESPONSES TO FORM INTERROGATORIES-EMPLOYMENT (SET ONE);
REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$2,760.00

TENTATIVE RULING:

Plaintiff's motion to compel defendant Ishar Investments, Inc. to provide initial responses to his Form Interrogatories-Employment, Set One, is moot. The declaration of Junlin Liu indicates that plaintiff received responses from defendant on September 11, 2025. While plaintiff argues that the responses are unverified and, therefore, the equivalent of no response at all, this is incorrect. Code of Civil Procedure, section 2030.250 provides that the party to whom the interrogatories are directed shall sign the response under oath unless the response contains only objections. It further provides that the attorney for the responding party shall sign any responses that contain an objection. The Liu declaration states that the responses received on September 11, 2025, contained only objections. The copy of the responses attached to the Liu declaration is signed by counsel for defendant. If plaintiff contends that the objections lack merit, the proper method to address that issue is a motion to compel further response pursuant to Code of Civil Procedure, section 2030.300. Defendant's contention that such a motion is barred by the 45-day time limit in Code of Civil Procedure, section 2031.310, subdivision (c) is not currently before the court.

Notwithstanding this ruling, defendant's counsel is admonished to provide substantive responses to plaintiff's discovery requests to avoid costly, time-consuming and unnecessary discovery motions.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 6**

25-CIV-03556

DOMINIC HIGBEE-GONSALVES VS. ISHAR INVESTMENTS, INC., ET AL

DOMINIC HIGBEE-GONSALVES
ISHAR INVESTMENTS, INC.

CHRISTINA BEGAKIS
KANDICE CANCHAN

MOTION TO COMPEL INITIAL RESPONSES TO SPECIAL INTERROGATORIES (SET ONE); REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$2,760.00

TENTATIVE RULING:

Plaintiff's motion to compel defendant Ishar Investments, Inc. to provide initial responses to his Special Interrogatories, Set One, is moot. The declaration of Junlin Liu indicates that plaintiff received responses from defendant on September 11, 2025. While plaintiff argues that the responses are unverified and, therefore, the equivalent of no response at all, this is incorrect. Code of Civil Procedure, section 2030.250 provides that the party to whom the interrogatories are directed shall sign the response under oath unless the response contains only objections. It further provides that the attorney for the responding party shall sign any responses that contain an objection. The Liu declaration states that the responses received on September 11, 2025, contained only objections. The copy of the responses attached to the Liu declaration is signed by counsel for defendant. If plaintiff contends that the objections lack merit, the proper method to address that issue is a motion to compel further response pursuant to Code of Civil Procedure, section 2030.300. Defendant's contention that such a motion is barred by the 45-day time limit in Code of Civil Procedure, section 2031.310, subdivision (c) is not currently before the court.

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